

**SUBSTITUTE FOR
SENATE BILL NO. 214**

A bill to amend 1984 PA 270, entitled
"Michigan strategic fund act,"
(MCL 125.2001 to 125.2094) by adding sections 9a and 9b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 9a. As used in sections 9b and 9c:

(a) "Strategic advisory board" means the strategic advisory
board created in section 9b.

(b) "Strategic plan" means the strategic plan required under
section 9c(1) and includes an updated strategic plan under section
9c(2) .

**Sec. 9b. (1) The strategic advisory board is created in the
fund.**

(2) The strategic advisory board must consist of the following



1 members:

2 (a) The following voting members:

3 (i) The 4 members elected by the nonvoting members described in
4 subdivision (b) (i) as described under subsection (7).

5 (ii) The 4 members elected by the nonvoting members described
6 in subdivision (b) (ii) as described under subsection (7).

7 (iii) The 4 members elected by the nonvoting members described
8 in subdivision (b) (iii) as described under subsection (7).

9 (iv) The 4 members elected by the nonvoting members described
10 in subdivision (b) (iv) as described under subsection (7).

11 (v) The 4 members elected by the nonvoting members described
12 in subdivision (b) (v) as described under subsection (7).

13 (vi) The 4 members elected by the nonvoting members described
14 in subdivision (b) (vi) as described under subsection (7).

15 (vii) The 4 members elected by the nonvoting members described
16 in subdivision (b) (vii) as described under subsection (7).

17 (viii) The 4 members elected by the nonvoting members described
18 in subdivision (b) (viii) as described under subsection (7).

19 (b) The following, except as otherwise provided in this
20 section, nonvoting members, appointed by the governor:

21 (i) The following nonvoting members with expertise in jobs,
22 talent acquisition, and small business:

23 (A) One representative from Traverse Connect.

24 (B) One representative from Business Leaders for Michigan.

25 (C) One representative from the Detroit Chamber of Commerce.

26 (D) One representative from the Upjohn Institute.

27 (E) One representative from MichBusiness.

28 (F) One representative from the department of labor and



1 economic opportunity.

2 (G) One representative from the Small Business Association of
3 Michigan.

4 (H) One representative from Michigan Works!.

5 (ii) The following nonvoting members with expertise in transit:

6 (A) One representative from Transportation Riders United.

7 (B) One transit representative from the Southeast Michigan
8 Council of Governments.

9 (C) One representative from The Rapid.

10 (D) One representative from the Capital Area Transit
11 Authority.

12 (E) One representative from SMART.

13 (F) One representative from the Detroit department of
14 transportation.

15 (G) One representative from the state transportation
16 department.

17 (H) One representative from the Michigan Transportation Team
18 Coalition.

19 (I) One representative from the Michigan Public Transit
20 Association.

21 (J) One representative from the Regional Transit Authority.

22 (iii) The following nonvoting members with expertise in economic
23 and community development:

24 (A) One representative from the Northeast Michigan Council of
25 Governments.

26 (B) One representative from Lakeshore Advantage.

27 (C) One representative from The Right Place.

28 (D) One representative from Saginaw Future.

29 (E) One representative from Flint and Genesee Economic



1 Alliance.

2 (F) One representative from the Lansing Economic Area
3 Partnership.

4 (G) One representative from the Cornerstone Alliance.

5 (H) One representative from Southwest Michigan First.

6 (I) One representative from the Detroit Economic Growth
7 Corporation.

8 (J) One representative from the Detroit Regional Partnership.

9 (K) One representative from the Michigan Economic Developers
10 Association.

11 (L) One representative from the Northern Lakes Economic
12 Alliance.

13 (M) One representative from the MEDC.

14 (N) One representative from the office of global Michigan.

15 (O) One representative from the Community Economic Development
16 Association of Michigan.

17 (P) One representative from Networks Northwest.

18 (Q) One representative from the Michigan Municipal League.

19 (R) One representative from the Michigan Townships
20 Association.

21 (S) One representative from the Michigan Downtown Association.

22 (T) One representative from the Michigan Black Business
23 Alliance.

24 (U) One representative from the department of treasury.

25 (iv) The following nonvoting members with expertise in housing
26 or utilities services:

27 (A) One representative from Michigan Future.

28 (B) One representative from Consumers Energy.

29 (C) One representative from DTE Energy.



1 (D) One representative from Macomb County Planning and
2 Economic Development.

3 (E) One representative from Oakland County Economic
4 Development.

5 (F) One representative from Wayne County.

6 (G) One representative from the Tribal Government Services and
7 Policy.

8 (H) One representative from Environmental Resource Group.

9 (I) One representative from the Apartment Association of
10 Michigan.

11 (J) One representative from ICCF Community Homes.

12 (K) One representative from the department of health and human
13 services.

14 (L) One representative from the Michigan state housing
15 development authority created in section 21 of the state housing
16 development authority act of 1966, 1966 PA 346, MCL 125.1421.

17 (M) One representative from the Michigan Housing Council.

18 (N) One representative from the Homebuilders Association of
19 Michigan.

20 (v) The following nonvoting members with expertise in
21 education:

22 (A) One individual who represents the Michigan Community
23 College Association.

24 (B) One individual who is an economics expert from Michigan
25 State University.

26 (C) One individual who is an economics expert from the
27 University of Michigan.

28 (D) One representative from the Michigan Education
29 Association.



1 (E) One representative from the Michigan Association for the
2 Education of Young Children.

3 (F) One representative from the Michigan Education Justice
4 Coalition.

5 (G) One representative from Michigan Education Technology
6 Leaders.

7 (H) One representative from the Michigan Education Research
8 Institute.

9 (I) One representative from the Michigan College Access
10 Network.

11 (J) One representative from the department of education.

12 (K) One representative from the department of lifelong
13 education, advancement, and potential.

14 (L) One representative from the Michigan Association of School
15 Boards.

16 (M) One representative from the Michigan Association of State
17 Universities.

18 (N) One representative from Western Michigan University.

19 (O) One representative from Wayne State University.

20 (vi) The following nonvoting members with expertise in rural
21 development:

22 (A) One representative from Invest UP.

23 (B) One representative from the Middle Michigan Development
24 Corporation.

25 (C) One representative from the Rural Partners of Michigan.

26 (D) One representative from the Michigan Rural Community
27 Assistance Program (RCAP).

28 (E) One representative from the department of agriculture and
29 rural development.



(F) One representative from the Michigan Rural Development Council.

(G) One representative from the department of labor and economic opportunity, office of rural prosperity.

(vii) The following nonvoting members with expertise in innovation, technology, or manufacturing:

(A) One representative from the Michigan Chamber of Commerce.

(B) One representative from the Ann Arbor Spark.

(C) One representative from Michigan Central.

(D) One representative from Michigan State University Burgess Institute for Entrepreneurship and Innovation.

(E) One representative from University of Michigan Center for Innovation.

(F) One representative from ID Ventures.

(G) One representative from Western Michigan University's Center for Bioscience Research and Commercialization.

(H) One representative from the Michigan Manufacturers Association.

(I) One representative from Michauto.

(J) An innovation report policy representative of the Citizen's Research Council.

(viii) The following nonvoting members with expertise in environmental matters:

(A) One representative from the Michigan Environmental Justice Coalition.

(B) One representative from the Clearwater Conservation Committee.

(C) One representative from the Michigan League of Conservation Voters.



1 (D) One representative from the Michigan Organic Farm and Food
2 Alliance.

3 (E) One representative from the UP Land Conservancy.

4 (F) One representative from For the Love of Water (FLOW).

5 (G) One representative from the department of environment,
6 Great Lakes, and energy.

7 (H) One representative from the department of natural
8 resources.

9 (I) One representative from the Michigan Environmental
10 Council.

11 (c) The following nonvoting members, appointed by the
12 governor:

13 (i) Two individuals who are experts on national economics.

14 (ii) Two individuals who are top site-selection consultants.

15 (iii) Two individuals who are each a leader of a national
16 economic development organization focused on policy and practice.

17 (3) The governor shall appoint the members of the strategic
18 advisory board described under subsection (2) (b) within 90 days
19 after the effective date of the amendatory act that added this
20 section.

21 (4) The term of a member of the strategic advisory board is 1
22 year or until a successor is appointed under subsection (2),
23 whichever is later, but not to exceed the time period it takes the
24 strategic advisory board to develop the strategic plan in
25 accordance with section 9c.

26 (5) If a vacancy occurs on the strategic advisory board, the
27 governor shall appoint an individual to fill the vacancy for the
28 balance of the term.

29 (6) The governor may remove a member of the strategic advisory



1 board for incompetence, dereliction of duty, malfeasance,
2 misfeasance, or nonfeasance in office, or any other good cause.

3 (7) The individuals appointed under subsection (2)(b) shall
4 call the first meeting of the strategic advisory board. At the
5 first meeting, the nonvoting members appointed under subsection
6 (2)(b) shall elect the voting members under subsection (2)(a) as
7 follows:

8 (a) The nonvoting members described in subsection (2)(b)(i)
9 shall elect 4 of its own members listed under subsection (2)(b)(i)
10 to serve as voting members under subsection (2)(a)(i).

11 (b) The nonvoting members described in subsection (2)(b)(ii)
12 shall elect 4 of its own members listed under subsection (2)(b)(ii)
13 to serve as voting members under subsection (2)(a)(ii).

14 (c) The nonvoting members described in subsection (2)(b)(iii)
15 shall elect 4 of its own members listed under subsection (2)(b)(iii)
16 to serve as voting members under subsection (2)(a)(iii).

17 (d) The nonvoting members described in subsection (2)(b)(iv)
18 shall elect 4 of its own members listed under subsection (2)(b)(iv)
19 to serve as voting members under subsection (2)(a)(iv).

20 (e) The nonvoting members described in subsection (2)(b)(v)
21 shall elect 4 of its own members listed under subsection (2)(b)(v)
22 to serve as voting members under subsection (2)(a)(v).

23 (f) The nonvoting members described in subsection (2)(b)(vi)
24 shall elect 4 of its own members listed under subsection (2)(b)(vi)
25 to serve as voting members under subsection (2)(a)(vi).

26 (g) The nonvoting members described in subsection (2)(b)(vii)
27 shall elect 4 of its own members listed under subsection (2)(b)(vii)
28 to serve as voting members under subsection (2)(a)(vii).



1 (h) The nonvoting members described in subsection (2) (b) (viii)
2 shall elect 4 of its own members listed under subsection (2) (b) (viii)
3 to serve as voting members under subsection (2) (a) (viii) .

4 (8) After the voting members have been elected at the first
5 meeting, the voting members of the strategic advisory board shall
6 elect a member as a chairperson and may elect other officers that
7 it considers necessary or appropriate. The governor may appoint 1
8 of the voting members to serve as a co-chair of the strategic
9 advisory board. The strategic advisory board shall meet at least
10 quarterly, or more frequently at the call of the chairperson or co-
11 chair if appointed or at the request of 10 or more members.

12 (9) A majority of the voting members of the strategic advisory
13 board constitute a quorum for transacting business. A vote in favor
14 by a majority of the voting members of the strategic advisory board
15 serving is required for any action of the strategic advisory board.

16 (10) The strategic advisory board shall conduct its business
17 in compliance with the open meetings act, 1976 PA 267, MCL 15.261
18 to 15.275.

19 (11) A writing that is prepared, owned, used, possessed, or
20 retained by the strategic advisory board in performing an official
21 function is subject to the freedom of information act, 1976 PA 442,
22 MCL 15.231 to 15.246.

23 (12) A member of the strategic advisory board is not entitled
24 to compensation for service on the strategic advisory board, but
25 the strategic advisory board may reimburse a member for actual and
26 necessary expenses incurred in serving.

27 (13) Only the voting members of the strategic advisory board
28 shall develop a strategic plan in accordance with section 9c with
29 advice and collaboration from the nonvoting members as described in



1 this section.

2 (14) In addition, the strategic advisory board may do either
3 of the following:

4 (a) Take any other action necessary to achieve the purposes of
5 section 9c.

6 (b) Perform any other duties or exercise any other powers
7 assigned to the strategic advisory board by law.

8 (15) Once the strategic advisory board develops and submits
9 the strategic plan in accordance with section 9c, the strategic
10 advisory board is dissolved and shall cease operations.

11 Enacting section 1. This amendatory act does not take effect
12 unless Senate Bill No. 213 of the 103rd Legislature is enacted into
13 law.